

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                     |                                     |                                                       |                                               |                                 |
|--------------------------------------------------|-------------------------------------|-------------------------------------|-------------------------------------------------------|-----------------------------------------------|---------------------------------|
| Investigator:<br>Daniel Cooper                   | Team:<br>Squad #7                   | CCRB Case #:<br>201800430           | <input type="checkbox"/> Force                        | <input checked="" type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                     |                                     | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.                 | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Sunday, 12/17/2017 10:16 PM  | Location of Incident:<br>[REDACTED] | Precinct:<br>109                    | 18 Mo. SOL<br>6/17/2019                               | EO SOL<br>6/17/2019                           |                                 |
| Date/Time CV Reported<br>Wed, 01/17/2018 8:52 PM | CV Reported At:<br>CCRB             | How CV Reported:<br>On-line website | Date/Time Received at CCRB<br>Wed, 01/17/2018 8:52 PM |                                               |                                 |

| Complainant/Victim | Type       | Home Address |
|--------------------|------------|--------------|
| [REDACTED]         | [REDACTED] | [REDACTED]   |

| Witness(es) | Home Address |
|-------------|--------------|
| [REDACTED]  | [REDACTED]   |
| [REDACTED]  | [REDACTED]   |

| Subject Officer(s)  | Shield | TaxID  | Command |
|---------------------|--------|--------|---------|
| 1. Officers         |        |        | 109 PCT |
| 2. POM Jason Molloy | 24626  | 962626 | 109 PCT |
| 3. POF Loreal Lurch | 07385  | 961539 | 109 PCT |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. POM Gregg Reutter   | 22232     | 962725 | 109 PCT  |
| 2. SGT Yaudy Fernandez | 00745     | 943227 | 109 PCT  |
| 3. SGT Angel Cordero   | 02202     | 944257 | 109 PCT  |
| 4. POM Hao Huynh       | 16243     | 957693 | 109 PCT  |
| 5. POM Kyle Bunch      | 20264     | 958345 | 109 PCT  |
| 6. POM John Attardi    | 19702     | 962231 | 109 PCT  |

| Officer(s)         | Allegation                                                                             | Investigator Recommendation |
|--------------------|----------------------------------------------------------------------------------------|-----------------------------|
| A.POF Loreal Lurch | Discourtesy: Police Officer Loreal Lurch spoke discourteously to § 87(2)(b) [REDACTED] | [REDACTED]                  |
| B.POM Jason Molloy | Discourtesy: Police Officer Jason Molloy spoke discourteously to § 87(2)(b) [REDACTED] | [REDACTED]                  |
| C. Officers        | Abuse: Officers forcibly removed § 87(2)(b) [REDACTED] to the hospital.                | [REDACTED]                  |

### Case Summary

On January 17, 2018, § 87(2)(b) filed this complaint via CCRB's on-line website.

On December 17, 2017, at approximately 10:16 p.m., while inside of § 87(2)(b) in Queens, § 87(2)(b) contacted 911 and stated her mother, known to the investigation as § 87(2)(b) attempted to use heroin intravenously. PO Jason Molloy, PO Loreal Lurch and additional officers from the 109<sup>th</sup> Precinct responded to the 911 call with Emergency Medical Service (EMS). While placing § 87(2)(b) into the back of the ambulance, PO Molloy and PO Lurch allegedly told her to, "Sit the fuck down" (**Allegation A and Allegation B: Discourtesy:** § 87(2)(g) § 87(2)(b) was transported to § 87(2)(b) for a psychiatric evaluation (**Allegation C: Abuse of Authority:** § 87(2)(g)

There was no video evidence for this case.

**Allegation A: Discourtesy: Police Officer Loreal Lurch spoke discourteously to § 87(2)(b)**

**Allegation B: Discourtesy: Police Officer Jason Molloy spoke discourteously to § 87(2)(b)**

**Allegation C: Abuse of Authority: Officers forcibly removed § 87(2)(b) to the hospital.**

It is undisputed that officers responded to a 911 call that § 87(2)(b) injected herself with a substance thought to be heroin.

§ 87(2)(b) stated that her husband, known to the investigation as § 87(2)(b) contacted 911. In an attempt to prevent her son, § 87(2)(b) § 87(2)(b) from continuing to use drugs, § 87(2)(b) told him that she had some heroin that they could use together. § 87(2)(b) stated that she only made that comment as a ploy to convince § 87(2)(b) § 87(2)(b) to get help for his heroin addiction. § 87(2)(b) denied that she had any heroin, that she attempted to ingest or ingested any narcotics, or that she was under the influence of any drugs or alcohol. § 87(2)(b) denied that she made any comments that she wanted to harm herself or anyone else.

§ 87(2)(b) stated that she encountered PO Molloy, PO Lurch and two EMTs outside of her home at which point they asked her to walk to the ambulance. § 87(2)(b) complied and told PO Molloy and PO Lurch that she did not have any homicidal or suicidal ideations and that her comments to her son were just a bad joke. Once in the ambulance § 87(2)(b) requested to get her purse and was told by PO Molloy to "Sit the fuck down." After § 87(2)(b) asked PO Lurch for her purse, PO Lurch also stated, "Sit the fuck down."

§ 87(2)(b) was transported to § 87(2)(b), but refused to answer any of the CCRB's questions regarding her medical history and cited HIPPA privacy concerns. § 87(2)(b) refused to sign HIPPA forms for § 87(2)(b) records and would only provide a HIPPA to the CCRB for the Pre-hospital Care Report from § 87(2)(b), who transported her to the hospital (Board Review 1).

§ 87(2)(b) and § 87(2)(b) each provided a phone statement to the CCRB, but they stated that they did not want to participate in the investigation. However, both stated that they

contacted 911 because § 87(2)(b) wanted to commit suicide and had attempted to inject herself with what they thought was heroin. § 87(2)(b) and § 87(2)(b) stated that they were in the home at the time of the alleged discourteous statements and that they would not have heard if an officer told § 87(2)(b) “Sit the fuck down” (Board Review 2 and 3).

PO Molloy stated that he arrived after the EMS arrived and at that point, he was instructed by an unidentified officer to escort § 87(2)(b) who was already in handcuffs at the back of the ambulance, to the hospital. PO Molloy did not recall who the supervisor on scene was and denied that he decided to have § 87(2)(b) transported to the hospital. PO Molloy did not recall being informed of § 87(2)(b) ingesting or attempting to ingest heroin or obtain any information about her speaking to her son about doing heroin. After reviewing the AIDED report that he prepared, PO Molloy did not recall speaking with § 87(2)(b) or any § 87(2)(b) family members. PO Molloy and he did not recall any additional details as to why § 87(2)(b) was transported to the hospital.

PO Molloy believed that § 87(2)(b) was possibly emotionally disturbed and under the influence, but he did not know the substance or narcotics she had used. PO Molloy did not recall the exact statements § 87(2)(b) made, but she was mumbling nonsensically and seemed “upset.” PO Molloy rode with § 87(2)(b) to the hospital but denied that he or PO Lurch told § 87(2)(b) to “Sit the fuck down” and denied that they used profanity (Board Review 6 and 7).

§ 87(2)(g)  
PO Lurch did not recall which supervisor or what additional officers were at the location. An officer told PO Lurch that § 87(2)(b) was acting “mentally unstable” and had made comments about wanting to harm herself, but PO Lurch denied that she knew § 87(2)(b) ingested heroin or attempted to ingest heroin. PO Lurch denied that she entered the back of the ambulance with PO Molloy and that she said, “Sit the fuck down.” PO Lurch acknowledged she heard PO Molloy and the EMTs telling § 87(2)(b) “Sit down,” but she denied that anyone stated, “Sit the fuck down.” PO Lurch denied that she or PO Molloy used profanity (Board Review 8 and 9).

Sgt. Fernandez, who was listed on the roll call as being the patrol supervisor, stated that his assignment was changed and he worked administrative duties at the stationhouse. Sgt. Fernandez did not recall if he responded to § 87(2)(b) address or had any involvement in § 87(2)(b) being removed to the hospital (Board Review 12 and 13).

The AIDED report completed by PO Molloy notes that § 87(2)(b) was a harm to herself and had suicidal tendencies (Board Review 9). During the 911 call, § 87(2)(b) confirmed that § 87(2)(b) injected herself with “something” in an attempt to kill herself (Board Review 13- 15).

The Pre-hospital Care Report noted that when EMTs arrived, they saw § 87(2)(b) throw a knife she had in her hand, which they later recovered. During their conversation with § 87(2)(b) she stated that she wanted to die, and medical personnel found an intravenous catheter which appeared to have blood on it. The Pre-hospital Care Report also notes that § 87(2)(b)

was combative with medical personnel and the officers, refused to sit down and attempted to walk off the ambulance (see privileged documents).

An Emotionally Disturbed Person (EDP) is a person who appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to themselves or others. When an officer reasonably believes that person is an EDP, that person may be taken into protective custody and transported to the hospital for treatment. Patrol Guide, Section 221-13 (Board Review 1).

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

#### **Civilian and Officer Histories**

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 5).
- PO Lurch has been a member of service for two years and this is the first CCRB complaint to which she has been a subject.
- PO Molloy has been a member of service for one year and this is the first CCRB complaint to which he has been a subject

#### **Mediation, Civil, and Criminal Histories**

- This case was unsuitable for mediation.
- As of May 15, 2018, a Notice of Claim inquiry for § 87(2)(b) is pending (Board Review 11).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

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Squad No.: \_\_\_\_\_

Investigator: \_\_\_\_\_  
Signature Print Title & Name Date

Squad Leader: \_\_\_\_\_  
Signature Print Title & Name Date

Reviewer: \_\_\_\_\_  
Signature Print Title & Name Date